



The Trial Code
of the
Most Worshipful Grand Lodge
of
Free and Accepted Masons of Utah

As approved by Grand Lodge at the Annual Communication of January 22-23, 1951, and subsequently revised by amendment.

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TRIAL CODE

SECTION 200. MASONIC OFFENSES.

Masonic Offenses are defined to be:

- First: A violation of the laws of the United States, or of the State in which the offender may reside or be, involving commission of a felony or other offense involving moral turpitude.
- Second: Willful violation of the offender's obligations as a Mason, of the Constitution or laws of Grand Lodge or of the by-laws of the Lodge in which the offender holds membership.
- Third: Any other act which tends to impair the standing or reputation of the Fraternity before the world.
- Fourth: Any misrepresentation made for the purpose of obtaining the degrees of Freemasonry.

SECTION 201. JURISDICTION OF OFFENSES.

Every Lodge has jurisdiction over its own members wheresoever dispersed. If the accused is a member of a Lodge of this Jurisdiction, the charges shall be sent to that Lodge for trial; but if the Lodge waives its right, or refuses or fails to entertain said charges at the next regular meeting thereof, the Lodge within whose jurisdiction the alleged offense was committed shall entertain said charges and proceed in the premises as in this Trial Code provided.

Every Lodge has jurisdiction over all non-affiliated and sojourning Masons residing, or charged with committing a Masonic offense, within its jurisdiction. If the accused is such a Mason, charges may be preferred either in any Lodge having jurisdiction over the place of such residence or sojourn, or in any Lodge within whose jurisdiction the alleged offense took place; and the Lodge in which such charges are first filed shall have exclusive jurisdiction in the premises. Whenever the attention of the Grand Secretary shall be called to any Masonic offense committed by any non-affiliated or sojourning Mason, the same shall be referred to the Grand Master of his action thereon.

SECTION 202. PROCEDURE.

Whenever a Mason is charged with any Masonic offense, the proceedings in the premises shall be conducted substantially in accordance with the rules and procedure in the Trial Code provided.

SECTION 203. CHARGES, HOW PREFERRED.

If a Masonic offense be committed without the Lodge, or when the Lodge is not in session or at labor, charges against the offender may be preferred by any Master Mason or Master Masons. If no other accuser makes charges, and it be brought to his attention that there is probable cause to believe that a Masonic offense had been committed, it shall be the duty of the Junior Warden to prefer charges.

If any Masonic offense be committed in the Lodge while in session or at labor, the Master may direct the filing of charges, or may summarily dispose of the offense by requiring the offender to show cause why he should not be dealt with by the Lodge without further delay. In the latter case, he shall cause the alleged offender to stand, shall state to him the nature of the offense charged against him, and by whom preferred, and permit him to offer such extenuation or excuse for his conduct as he may wish to make. If

the accused denies the charge, and demands trial, charges shall be filed and the matter disposed of as herein otherwise provided. On any such summary disposal of such matter, the offender may be barred from further attendance at the meeting, suffer reprimand or such other punishment, short of suspension, expulsion or fine, as the Master may impose with the approval of a majority of the members present.

Proceedings against the Master of Lodge may be taken only in the manner thereafter provided.

SECTION 204. FORM AND FILING OF CHARGES.

All charges of Masonic offenses, except those committed in open Lodge, shall be in writing and signed by the accuser, shall specify with common certainty the nature of the act or acts charged as constituting the offense, and state the time and place where the same was committed. Such charges shall be filed with the Master or the Secretary. The Master in any case shall examine the charges before further action thereon, and may, if he deems them insufficient to state a Masonic offense or wanting in certainty, return them to the accuser or accusers for amendment, if such be possible, to correct such defect. Upon his determining that the charges as filed, or amended state a Masonic offense and are sufficiently specific to inform the Lodge and the accused of the nature and details of the offense charged, the charges shall be filed with the Secretary, and they shall be read by him at the next regular meeting of such Lodge, and entered in full upon its minutes. Notice shall be given all members of the Lodge by the Secretary that election of a Trial Commission to hear and act upon such charges will take place at the next regular meeting.

SECTION 205. TRIAL COMMISSION.

Trial of any such charges shall be by a Trial Commission, consisting of five members of the Lodge in good standing, who shall be elected by a written ballot and by a majority vote of those present, at the next regular meeting of the Lodge following the reading of such charges. The elective officers and the members of the Committee on Grievance and Appeals of Grand Lodge, the Master, Junior Warden, and Secretary of the Lodge, the accuser or accusers, the persons designated by the Master to act as prosecuting attorney and defense counsel and any person who may be known to have such knowledge of the facts respecting the charges as to qualify him as a witness, shall not be eligible to sit on such Trial Commission. Upon any new trial of the charges, no person who actively participated in the former trial may act as Commissioner. If any such ineligible person be selected as a Trial Commissioner he shall make the fact known at the earliest time possible, and his place on such Commission shall be filled by the Lodge, by election in the same manner at its next regular meeting, or if no such meeting occurs prior to the trial by appointment by the Master, concurred in by a majority of the remaining Trial Commission.

SECTION 206. ORGANIZATION OF COMMISSION.

The Master shall fix the time for trial and give prompt notice thereof to the members of such Trial Commission. The Trial Commission shall assemble for the trial at such time and place within the jurisdiction of the Lodge and convenient to the parties as the Master shall indicate. Three members of the Commission shall constitute a quorum, except that less than a quorum may adjourn from time to time. If at any meeting a Commissioner is present who was absent at some previous meeting, the substance or summary of all proceedings had and evidence taken shall be read or be made known to him in the presence of the Commission before the trial proceeds. The Master shall preside over the Commission, and shall decide all questions of Masonic Law which may arise during the trial. All meetings of the Trial Commission shall also be attended by the Junior Warden, or some other member of the Lodge appointed by the Master, who shall act as prosecuting attorney; by a defense counsel to be appointed by the Master; and by the Secretary, or some other member of the Lodge appointed by the Master, who shall act as recorder and keep a correct and full record of the proceedings and trial.

Only the Master, the Wardens, and Secretary of the Lodge, similar officers of any Lodge of which the accused is a member, the prosecutor, defense counsel, a shorthand reporter who must be a Mason, and the witnesses for the prosecution and defense shall be present at any hearing held as such Commission, and the Commission may require any witness or witnesses who have not testified to remain without the place of hearing.

If for any reason the Master or any other trial officer shall be unable or disqualified to perform the duties assigned him herein, the Master may appoint a Past Master of such Lodge, if one be available, otherwise any Master Mason, a member of the Lodge, to perform the duties of such absent or disqualified officer. Disqualification shall consist of such knowledge of the facts involved as to qualify the officer as a witness.

SECTION 207. COUNSEL.

In addition to the prosecuting attorney and defense counsel herein provided for, any Master Mason in good standing may, at the request of the accuser or the accused, appear as counsel and assist in the prosecution or defense.

SECTION 208. NOTICE AND SUMMONS.

The defendant shall be served at least thirty days prior to the time set for trial with a copy of the charges against him, certified as correct by the Secretary, together with a summons setting forth the time for trial, requiring him to file his plea at least five days prior to the date of such hearing, and directing him to appear at the time of such trial under penalty of being proceeded against in his absence. Service may be made upon him in person, or by leaving such papers at his residence enclosed in a sealed envelope directed to him, the process server to be a Master Mason designated by the Master for such duty, or by the Secretary forwarding such papers to him by registered mail, with return receipt demanded, at his last known place of abode, within or without the State. If the accused resides without the State, such letter shall be sent by air mail. Service by mail shall be complete at the end of the twentieth day after the date appearing on such return receipt. If for any reason service cannot be made upon the accused in time, the Master shall fix a new date for trial, and service shall then be had as above provided.

SECTION 209. CONTINUANCES AND RECESSES.

Trials shall be had at the time and place set forth in the summons served upon the accused, unless the Trial Commission shall continue the same upon application of the defendant, or the prosecuting attorney, for good cause shown. Any application for continuance shall be made only after the due notice of intent to apply for the same shall have been served upon counsel for the opposing party. The Commission may also recess the trial, when once commenced, from time to time, but such recesses shall not extend the trial for more than ten days subsequent to its commencement unless the Master, for good cause shown, shall permit such extension. No continuance shall be granted by reason of the defendant absenting himself from the trial, but defense counsel appointed by the Master shall, and other defense counsel may, be present at all proceedings had in the defendant's absence.

SECTION 210. PLEAS BY DEFENDANT - CONTINUANCE - TRIAL PROCEEDINGS.

The defendant shall file his written plea to such charges with the Secretary at least five days prior to the time set for trial. The plea of the defendant may be "not guilty", "guilty", or an admission of the charges

made in whole or in part and such matter in avoidance of culpability with respect thereto as the defendant may deem matter of defense.

If the plea be "guilty", the Trial Commission nevertheless shall receive such evidence as it may deem requisite, or as either the prosecution or defense shall offer, bearing on the extent of guilt, and which it may deem proper to consider in deterring the judgment.

If the plea be other than "guilty", trial shall proceed at the time fixed, or at the time to which the same shall have been continued.

SECTION 211. WITNESSES.

The Master shall, at the request of either party, summon such witnesses as are Masons residing or being within the jurisdiction of the Lodge to appear and testify before the Commission. Witnesses who are Master Masons in good standing shall testify upon their honor as such; all others shall testify under oath or affirmation. No Commissioner selected to try charges shall be permitted to testify upon such a trial.

SECTION 212. DEPOSITIONS.

Whenever the attendance of a witness, who is a Mason, cannot be procured, his testimony may be taken by deposition before the Master or Secretary of any Lodge within whose jurisdiction he resides or is sojourning, upon such notice to the adverse part as the Master of the Lodge in which the trial is to held shall fix; and the attendance of such witness may be compelled by summons of the Master of the Lodge of which he is a member or of the Lodge within whose jurisdiction he resides or is sojourning. His testimony shall be reduced to writing, signed by him, and authenticated by the certificate of the Master or Secretary before whom it was taken, under the seal of their Lodge.

The testimony of witnesses who are not Masons may be taken, upon the application of the party desiring such testimony, by deposition before some office authorized by law to administer oaths, and at such time and place, and upon such notice to the adverse party, as shall be designated by the Master.

SECTION 213. JUDGEMENT.

After all the testimony shall have been received the Commissioners shall proceed to deliberate upon and to determine their verdict and sentence, with none present but themselves. The judgment of a majority of the Commissioners shall be the decision and judgment of the whole, provided, that in determining the sentence to be imposed three votes shall be necessary for expulsion. The judgment of the Commissioners shall be signed by them all, and at the next regular meeting of the Lodge the Master shall read the same in full, pronounce the result, and shall direct the Secretary to record the same as judgment of the Lodge, and file the record for safekeeping in its archives. If such judgment is adverse to the accused, it shall not be made known until so read and pronounced by the Master.

SECTION 214. PENALTIES.

The penalties which may be inflicted are reprimand in open Lodge, suspension, or expulsion. All sentences of suspension shall be an indefinite or a definite period of time. A sentence of suspension for a definite period of time shall include the specified period of suspension imposed by the Trial Commission. After the judgment is pronounced the Secretary shall forthwith notify the defendant of the judgment and of his rights to appeal.

If the sentence is reprimand, the Master shall summon the defendant to appear at the next regular meeting of the Lodge, when the sentence shall be carried into effect; provided, that, if the defendant be a member of a Lodge of this Jurisdiction other than the Lodge in which he was tried, then, and in that event, with the consent of the Master of the Lodge in which the defendant was tried, consent of the Master of the Lodge in which the defendant was tried, the sentence may be carried into effect in the Lodge of which he is a member.

If the defendant shall file notice of appeal from any such sentence, within ten days after the same shall have been so pronounced in open Lodge, the judgment shall be stayed, but the defendant shall be debarred from all Masonic rights and privileges pending final disposal of such charges. Appeal filed later shall not operate to stay judgment. The sentence, in the absence of such appeal, shall go into effect immediately.

SECTION 215. TRANSMITTAL OF RECORDS.

In all cases where an appeal is filed, or where the sentence is suspension or expulsion, the Secretary, as promptly as possible, shall prepare a transcript or the record of the trial, including a full copy of any appeal which has been filed, and transmit the same to the Grand Secretary with dispatch.

In all cases where the defendant was a member of a Lodge other than the Lodge in which he was tried, the Master shall cause the Secretary to transmit certified copies of the judgment to the Secretary of the Lodge of which the defendant was a member, and to the Grand Secretary of the Jurisdiction. If appeal has been taken within ten days after pronouncement of judgment, such notice shall state the fact, and that execution of sentence thereby is suspended, but that the defendant is deprived of Masonic rights and privileges pending such appeal.

In case of any modification of the judgment or sentence upon appeal or review, or in case of restoration after judgment and sentence, notice thereof shall be given to the party, and shall also be transmitted as provided, in (a) and (b) of this Section.

SECTION 216. APPEALS.

Appeals must be in writing, and if made subsequent to the filing of the transcript with the Grand Secretary, shall be filed with him, a copy thereof being served upon the Master or Secretary of the Lodge. One appeal only will be allowed per conviction. For purposes of this Section, the term "appeal" shall refer to the legal process where a Mason who has been convicted of a Masonic offense may apply to the Grand Master for a review of his Masonic trial proceeding. Appeals may be filed at any time not later than thirty days after pronouncement of the judgment.

SECTION 217. PROCEDURE ON APPEAL OR REVIEW.

Upon receipt of any such transcript of record by the Grand Secretary, and of any notice of appeal, he shall transmit the same promptly to the Committee on Grievance and Appeals. All such cases shall be subject to review by such Committee, upon the record sent up and such affidavits, or other documents established as genuine, by oath or otherwise, to be the satisfaction of the Committee, as may be submitted and such oral testimony as the Committee may permit. In all cases where appeal has been made, and in any other case where the Committee shall determine that justice so requires, a hearing shall be given to the parties, notice thereof and of the time and place where the same is to be had to be served upon the accused and the Secretary of the Lodge by ordinary mail. The Committee may grant such continuance as justice may require. The Committee shall report its findings and recommendations at the Annual Communication of

Grand Lodge occurring next after it receipt of such transcript; provided that if such transcript is received within less than thirty days of such Annual Communication and, upon application by the committee, the Grand Master shall determine the time for consideration of such matter to be too short for due consideration, such findings and recommendations may go over to the next Annual Communication of Grand Lodge. Grand Lodge thereupon may affirm, reverse, or modify such judgment, or set same aside and direct that a new trial be had. Its decision shall be final and conclusive. If a new trial has been had, the proceedings after judgment therein shall be the same as herein provided for first review.

SECTION 218. RESTORATION AFTER SUSPENSION.

A member who was sentenced to a definite period of suspension shall be restored to all of his Masonic rights upon expiration of the period of suspension without further action.

The Lodge of which a suspended person was a member may at a regular meeting annul any sentence of indefinite suspension pronounced by itself and restore such person to all his Masonic rights and privileges; provided that notice of such proposed action shall have been given at the regular meeting next preceding. Restoration after indefinite suspension shall be by affirmative written ballot of two-thirds of the members present, and the Secretary shall promptly notify the restored party and the Grand Secretary.

There is no limitation to the number of times the question of restoration may be raised and voted upon, provided that new and material evidence not previously considered by the Lodge and/or Grand Lodge are presented by the suspended or expelled person. All applications for restoration shall comply with the foregoing requirements of this Section. Expelled persons may be restored only by Grand Lodge, as hereafter provided.

SECTION 219. RESTORATION BY GRAND LODGE.

Whenever any suspended Mason shall have made application to the Lodge of his membership for restoration, and has met with refusal, or in case the Lodge of his membership shall have ceased to exist, he may petition Grand Lodge for restoration. Notice of such petition shall be given to the Lodge of his membership, if in existence, and also to the Lodge which suspended him, if in existence, at least sixty days prior to the date of the Annual Communication of Grand Lodge next succeeding. Such petition shall be referred to the Committee on Grievance and Appeals for recommendation and shall be heard at the first Annual Communication of Grand Lodge occurring not less than sixty days subsequent to the filing of such petition. Persons who have been expelled may seek restoration in the same manner except that no prior application to the Lodge which expelled him, or to the Lodge of his membership, shall be made. Restoration to membership in good standing in the Fraternity so ordered by Grand Lodge shall not restore any such applicant to membership in the Lodge to which he formerly belonged, but the Grand Secretary shall issue him a demit showing him to be in good standing as an unaffiliated Mason in Utah, and thereafter he shall have the same status as any other unaffiliated Mason.

SECTION 220. NOTICES. PROOF OF SERVICE.

Whenever notice herein is required to be given and the time, manner, or form thereof is not provided, it shall be sufficient if the notice be in writing, shall be delivered to the Grand Secretary as to all matters pertaining to the Lodge, that such notice shall state intelligibly the matter with respect to which notice is given and time, if limited, in which action is to be taken respecting the said matter. Proof that notice has been given may be made by receipt of the person served therewith, showing the date of receipt and his official title, if any, or by a certificate of the officer of any Lodge or of Grand Lodge, or affidavit of any other person, setting forth the fact of such service. Notice shall be deemed complete from date of service.

TRIAL OF MASTER

SECTION 221. CHARGES.

Charges may be preferred against the Master of a Lodge by any three members thereof for abuse of his power, for violation of the Constitution or Regulations, or for un-Masonic conduct of any kind, which charges shall be in writing over their signatures, and shall be presented to Grand Lodge, if in session, or to the Grand Master during vacation.

SECTION 222. TRIAL COMMISSION.

Upon receipt of such charges, Grand Lodge, if the same be received by it while in session, otherwise the Grand Master, shall cause at least five Masters or Past Masters to assemble as a Trial Commission to hear evidence respecting such charges, and to give judgment thereon, and shall appoint a prosecuting attorney and defense counsel.

SECTION 223. ORGANIZATION OF COMMISSION.

The Trial Commission shall choose one of their number as President and one to act as Recorder, and the member presiding shall have authority to summon witnesses at the request of either party.

SECTION 224. NOTICE OF SUMMONS.

Upon the appointment of the Trial Commission, the Grand Lodge or the Grand Master, as the case may be, shall summon the accused to appear, answer and defend, at such time and place convenient to the parties as shall be indicated in the summons. If the accused is within the jurisdiction, at least (30) thirty days' time shall be given; and if he is without the jurisdiction, at least (60) sixty days' time shall be given.

SECTION 225. PENALTIES.

The penalties which may be inflicted are reprimand by the Grand Master, deprivation of office, suspension, or expulsion; and the judgment shall at once be carried into effect by order of the Grand Master.

The penalties of deprivation of office, suspension, or expulsion deprives the Member of the title and privileges of a Past Master specific to said term of office.

SECTION 226. RECORD TO GRAND SECRETARY.

The Trial Commission shall make a complete record of its proceedings and judgment and transmit the same to the Grand Secretary immediately after the conclusion of the trial.

SECTION 227. APPEAL.

An appeal may be taken to Grand Lodge by either party, at its next Annual Communication, but not unless written notice thereof shall have been filed with the Grand Secretary within thirty days after the conclusion of the trial.

SECTION 228. PROCEDURE.

Except wherein otherwise specifically provided, the provisions of the Trial Code governing trial of other Masons shall apply to the trial of a Master, the officers of Grand Lodge corresponding in office to the officer of the Lodge charged with a duty or function to discharge such duty or function. The provisions for reference of the judgment to the Committee on Grievance and Appeals, and the provisions for application to the Lodge of membership of the accused for restoration shall not apply, any application for restoration to be directed to Grand Lodge only.